

3.

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL FURTHER ANSWERES/RESPONSES TO REQUEST FOR ADMISSIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR ADMISSIONS, SET ONE AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,500.00
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,500.00

Tentative Ruling: Hearing Continued to 7/29/26.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507355	MANTECON vs CALIFORNIA DEPARTMENT OF TRANSPORTATION	DEMURRER ON 1ST AMENDED COMPLAINT
CVRI2507355	MANTECON vs CALIFORNIA DEPARTMENT OF TRANSPORTATION	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling: Defendant State of California, acting by and through the Department of Transportation's Demurrer, as to the 1st and 2nd Causes of Action is denied; as to the 5th Cause of Action, it is sustained with leave to amend within 20 days.

Defendant's Motion to Strike is granted.

TIMELINESS

While Plaintiffs complain that the demurrer is untimely, Defendant demonstrates that it was only the filing that was untimely. Furthermore, the court has discretion to consider an untimely demurrer. (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750.) The court chooses to hear the demurrer on the merits.

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Govt. Code § 815(a).) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

5TH CAUSE OF ACTION – NEGLIGENCE

Plaintiffs have pled liability under Government Code sections 815.2 and 820. A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (*Id.* at § 815.2.) “[A] public employee is liable for the injuries caused by his act or omission to the same extent as a private person.” (*Id.* at § 820(a).)

Defendant essentially argues that the claim is one for dangerous condition of public property and that under section 840, there is no vicarious liability. Defendant is correct. The 3rd cause of action is based on a dangerous condition lacking “required protective work-zone measures and oversight, including the absence of shadow traffic control trucks, crash trucks, and attenuator vehicles and the absence of on-site California Department of Transportation support personnel, creating an unreasonable risk of harm to highway workers.” (FAC ¶49.) The 5th cause of action for negligence repeats the same as the source of duty (FAC ¶66) and is based on a breach of “failing to adhere to CalTrans safety rules and protocols, failing to ensure required protective vehicles were placed between traffic and workers, and failing to provide adequate on-site personnel support at the time of the incident.” (FAC ¶67.) There is no substantive difference between the 3rd and 5th causes of action. “[T]hat public entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2, but rather by the provisions in sections 830 to 835.4 of the Government Code. A public employee is not liable for injuries caused by a condition of public property where such condition exists because of any act or omission of such employee within the scope of his employment. (Gov. Code, § 840.)” (*Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379, 383.)

Plaintiff relies on *McCarty v. State of California Dept. of Transp.* (2008) 164 Cal.App.4th 955 which is inapplicable as it relies on liability pursuant to Government Code section 815.4, i.e. an independent contractor.

As the negligence claim is merely duplicative of the dangerous condition of public property—and not an alternative theory—liability under sections 815.2 and 820 cannot stand.

1ST & 2ND CAUSES OF ACTION – WRONGFUL DEATH & SURVIVAL

To prevail on a wrongful death claim, a plaintiff must prove a wrongful act or neglect, i.e. negligence, that causes the death of another person. (*Musgrove v. Silver* (2022) 82 Cal.App.5th 694, 705.) A person is liable either for his own negligence, i.e. direct liability, or vicarious liability due to someone else's negligence. (*Ibid.*) "Unlike a cause of action for wrongful death, a survivor cause of action is not a new cause of action that vests in the heirs on the death of the decedent. It is instead a separate and distinct cause of action which belonged to the decedent before death but, by statute, survives that event. [Citation] The survival statutes do not create a cause of action. Rather, '[t]hey merely prevent the abatement of the cause of action of the injured person, and provide for its enforcement by or against the personal representative of the deceased.'" (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1264.)

Both the wrongful death claim and survival claim are based on sections 815.2 and 835. (FAC ¶35, 44.) The wrongful death claim is merely the dangerous condition of public property claim—but for the Plaintiffs themselves, while the survival claim is merely duplicative of the dangerous condition of the public property claim as it is the decedent's claim. While section 815.2 does not currently support a theory of liability, section 835 does. As a cause of action is properly pled.

Uncertainty

Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*) Here, the FAC is not so uncertain such that Defendant does not understand the claims.

MOTION TO STRIKE

A motion to strike may be applied to any irrelevant, false or improper matter, or any pleading not drawn or filed in conformity with the laws of the state, court rule, or court order. (Code Civ. Proc., § 436.) The grounds must appear on the face of the pleading or judicial notice. (*Id.* at § 437.)

Civil Code section 3291 permits prejudgment interest—but does not apply to public entities or public employees. Plaintiffs assert that they pled "as permitted by law" but fail to state any law that permits them to recover prejudgment interest.